

Employee Confidentiality / Non-Disclosure Agreement

NUMBER — Confidentiality & Non-Disclosure

This Agreement governs the confidentiality obligations of all NUMBER employees, both during and after employment.

Employee agrees, in this Agreement, that as a condition of continuing employment, Employee is required to hold any Confidential Information (defined below) of **Easy Pay Solutions, Inc., DBA NUMBER** ("NUMBER") in strict confidence and is prohibited from disclosing Confidential Information to any person or entity outside of NUMBER, directly or indirectly, for any purpose, without the express written permission of the owner. Employee acknowledges and recognizes that, during Employee's employment with NUMBER, Employee will be provided with access to NUMBER's confidential and proprietary business information, whether in writing or not.

Such confidential and proprietary information may include documents, technical documents, documentation, agreements, forms, contracts, technology, passwords, PCI materials, know-how, trade secrets, business plans, financial statements and other financial data (including, but not limited to, costs and expenses, revenue, income and profits, and pricing methods), methods, configurations, demonstrations, techniques, programming code, procedures (including, but not limited to, invoicing and pricing procedures), policies, processes, projects, products, specifications, fulfillment information, developments, strategic plans (including, but not limited to, business development, client retention, and marketing), research data, customer data (including, but not limited to, the type, volume, and pricing of products and services provided to customers, customer preferences, specifications, purchase information, and contact information), mailing lists, information concerning business systems such as work flow organization, training materials, software systems, hardware uses and applications, personnel data, computer programs (including software used pursuant to license agreements), marketing contacts, customer or client lists, prospective customer or prospective client lists, supplier lists, contractor lists, contacts with or knowledge of suppliers, partners, employees, customers, clients, and/or prospective customers or clients of NUMBER, employee information, and any confidential or proprietary information or other business information or data provided to or received from customers or clients (hereinafter collectively, "Confidential Information"). Confidential Information does not include information which:

- now, or hereafter becomes, through no act or failure to act on the part of Employee, generally known or available to the public;
- is hereafter rightfully furnished to or acquired by Employee from a third party, without restriction as to use or disclosure; or
- is information which Employee can document was independently developed or acquired by Employee without breach of any obligation of confidentiality or use of or access to any of NUMBER's Confidential Information.

Employee further acknowledges and understands that all Confidential Information is the exclusive property of NUMBER and that Employee is provided with access to Confidential Information during Employee's employment for the sole benefit of NUMBER. Accordingly, Employee agrees and understands that at all times while employed and after termination of employment, except as required by law or court order, Employee is required to maintain strict confidentiality of all Confidential Information and will not disclose to anyone (other than NUMBER or any person designated in writing by

NUMBER), or publish, utter, exploit, or make use of (or aid others in publishing, uttering, exploiting, or using), or otherwise use NUMBER's Confidential Information at any time for any purpose other than as authorized and in order to perform Employee's job duties. During Employee's employment with NUMBER, Employee will use Employee's best efforts to prevent unauthorized publication or disclosure of NUMBER's Confidential Information.

In the event Employee is requested or required (including, without limitation, by oral questions, interrogatories, requests for information or documents, subpoena, civil investigative demand, or any informal or formal investigation by any government or governmental agency or authority) to disclose any Confidential Information, Employee shall notify NUMBER promptly in writing so that NUMBER may seek a protective order or other appropriate remedy or, in NUMBER's sole discretion, waive compliance with the terms of this Agreement. Employee agrees not to oppose any action by NUMBER to obtain such protective order or other remedy.

Defend Trade Secrets Act notice. Notwithstanding the provisions above, Employee acknowledges and agrees that Employee is hereby notified in accordance with the Defend Trade Secrets Act of 2016 that Employee will not be held criminally or civilly liable under state or federal trade secret law for the disclosure of a trade secret that is made in confidence to a federal, state, or local government official, either directly or indirectly, or to an attorney, and that is made solely for the purpose of reporting or investigating a suspected violation of law, or that is made in a complaint or other document that is filed under seal in a lawsuit or other proceeding. Employee is also notified that if Employee files a lawsuit for retaliation by NUMBER for reporting a suspected violation of law, Employee may disclose trade secrets to Employee's attorney and use such information in the court proceeding if Employee files any document containing trade secret(s) under seal and does not disclose the trade secret(s), except pursuant to court order.

Upon separation from employment with NUMBER for any reason and/or at any other time upon request, Employee further agrees to surrender to NUMBER all Confidential Information, including, but not limited to, all documents, files (electronic or paper), writings, programming code, lists, notes, business, marketing or strategic plans, marketing information, financial information, client, customer, prospective client, prospective customer, contractor and supplier lists or information, programs, manuals, illustrations, models, passwords, accounts, and other such data, documents, files, information, property, and materials of any kind produced by Employee or coming into Employee's possession by or through employment with NUMBER. This includes but is not limited to any electronic data or files, which shall be delivered to NUMBER, and deleted from any electronic media in Employee's possession. Employee further agrees that all such data and materials are at all times NUMBER's property.

Employee understands and agrees that it is Employee's responsibility to take all necessary and prudent steps to maintain the confidentiality of NUMBER's confidential and proprietary business information and that of its customers and clients. Employee further understands and agrees that it is Employee's responsibility to report to NUMBER any information relating to the unauthorized disclosure of NUMBER's confidential or proprietary business information or that of its customers that may come to Employee's attention. This acknowledgement and agreement are in addition to any confidentiality obligations an Employee may otherwise have toward NUMBER, including but not limited to obligations pursuant to NUMBER policies, or any additional non-competition, non-disclosure or confidentiality agreements. Employee may be subject to disciplinary action, up to and including dismissal, for knowingly or unknowingly revealing Confidential Information in violation of this agreement.

Employee agrees that during his/her employment, and for a period of two (2) years thereafter, he/she will not solicit or contact any established customer, distributor, or employee of NUMBER for the purpose of inducing that customer, distributor, or employee to discontinue or diminish their relationship with NUMBER.

Furthermore, Employee promises, covenants, and agrees that Employee will never make any oral or written statements or take any action purposefully detrimental to the goodwill of the business of NUMBER or its officers, directors, employees, or agents or to the relationship of NUMBER with its suppliers, customers, employees, or any other persons having dealings with NUMBER or that would otherwise disparage or reflect unfavorably on NUMBER or its officers, directors, employees, or agents, except as required by law. The foregoing shall not be construed to interfere with Employee's section 7 rights under the National Labor Relations Act.

Employee is responsible for any breach of this Agreement and will indemnify and hold harmless NUMBER and its affiliates and their respective directors, officers, employees, agents, or representatives from and against any and all claims, damages, losses, liabilities, and expenses (including attorney fees and disbursements) arising out of any breach of this Agreement by Employee.

This Agreement shall be governed by and construed in accordance with the laws of the State of Maine (without regard to any conflict of law provisions thereof) and Employee hereby consents to jurisdiction of the courts of Maine over any matter arising hereunder. This Agreement shall be binding upon, inure to the benefit of, and be enforceable by the parties' respective successors and assigns.

I ACKNOWLEDGE, UNDERSTAND, AND AGREE THAT THE NON-PUBLIC INFORMATION I COME INTO CONTACT WITH DURING MY EMPLOYMENT IS STRICTLY CONFIDENTIAL TO NUMBER, AND ACCORDINGLY, I AGREE TO KEEP IT CONFIDENTIAL. THIS MEANS I WILL NOT USE IT OTHER THAN IN THE PERFORMANCE OF MY DUTIES OR DISCLOSE IT TO ANY PERSON OR ENTITY OUTSIDE NUMBER.

Print Full Name: _____

Signature: _____

Date: _____